

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #6	CCRB Case #: 201910276	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 11/15/2019 9:30 PM, Friday, 11/15/2019 9:49 PM	Location of Incident: 901 Livonia Avenue; 75th Precinct stationhouse	Precinct: 75	18 Mo. SOL 5/15/2021	EO SOL 12/30/2021	
Date/Time CV Reported Thu, 11/21/2019 1:43 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/26/2019 11:40 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Charles Barhold	01293	947981	075 PCT
2. Officers			075 PCT
3. An officer			075 PCT
4. POM Nowaiz Rasool	05482	961150	075 PCT
5. POM Sean Walsh	07614	961437	075 DET
6. POM Michael Amello	17857	949999	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Howard	17787	960683	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Charles Barhold	Abuse: At 901 Livonia Avenue in Brooklyn, Sergeant Charles Barhold searched the vehicle in which § 87(2)(b) was an occupant.	
B.POM Nowaiz Rasool	Abuse: At 901 Livonia Avenue in Brooklyn, Police Officer Nowaiz Rasool frisked § 87(2)(b)	
C.SGT Charles Barhold	Discourtesy: At 901 Livonia Avenue in Brooklyn, Sergeant Charles Barhold spoke discourteously to § 87(2)(b)	
D.POM Sean Walsh	Abuse: At the 75th Precinct stationhouse, Police Officer Sean Walsh refused to provide his name to § 87(2)(b)	
E. An officer	Discourtesy: At the 75th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	
F.POM Michael Amello	Force: At the 75th Precinct stationhouse, Police Officer Michael Amello used physical force against § 87(2)(b)	
G.POM Nowaiz Rasool	Force: At the 75th Precinct stationhouse, Police Officer Nowaiz Rasool used physical force against § 87(2)(b)	
H.POM Nowaiz Rasool	Discourtesy: At the 75th Precinct stationhouse, Police Officer Nowaiz Rasool spoke discourteously to § 87(2)(b)	
I. Officers	Force: At the 75th Precinct stationhouse, officers used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
J. An officer	Discourtesy: At the 75th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	
K. An officer	Abuse: At the 75th Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.	

Case Summary

On November 21, 2019, § 87(2)(b) filed this complaint with IAB. On November 26, 2019, the case was received at the under IAB log #19-42121.

On November 15, 2019, at approximately 10:46 p.m., § 87(2)(b) parked his vehicle in front of 901 Livonia Avenue in Brooklyn. As he was getting out of the vehicle, Sgt. Charles Barhold, PO Michael Amello, PO Nowaiz Rasool, and PO Sean Walsh, all of the 75th Precinct, got out of an unmarked van and approached § 87(2)(b). Sgt. Barhold searched § 87(2)(b)'s vehicle (**Allegation A – Abuse of Authority: § 87(2)(g)**). PO Rasool allegedly frisked § 87(2)(b) (**Allegation B – Abuse of Authority: § 87(2)(g)**). Sgt. Barhold said, “Fuck him,” referring to § 87(2)(b) (**Allegation C – Discourtesy: § 87(2)(g)**). The officers arrested § 87(2)(b) and brought him back to the 75th Precinct stationhouse, where § 87(2)(b) asked PO Walsh for his name, but PO Walsh allegedly refused to provide it (**Allegation D – Abuse of Authority: § 87(2)(g)**). An officer asked § 87(2)(b) “Why you gotta be a dick?” (**Allegation E – Discourtesy: § 87(2)(g)**). PO Amello and Rasool took § 87(2)(b) to the ground (**Allegation F – Force: § 87(2)(g)**) (**Allegation G – Force: § 87(2)(g)**). While handcuffing § 87(2)(b) PO Rasool stated, “Put these fucking things on” (**Allegation H – Discourtesy: § 87(2)(g)**). Officers kicked and punched § 87(2)(b) and stepped on his head (**Allegation I – Force: § 87(2)(g)**). An officer told § 87(2)(b) to “Shut the fuck up” and threatened § 87(2)(b) with force (**Allegation J – Discourtesy: § 87(2)(g)**) (**Allegation K – Abuse of Authority: § 87(2)(g)**). § 87(2)(b) was arrested and charged with § 87(2)(b).
§ 87(2)(b)
§ 87(2)(b) ice (**Board Review 01**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

BWC footage of this incident was obtained and can be found in IAs #44-49. Summaries of the BWC footage can be found in IAs #99, 102-105. 75th Precinct stationhouse surveillance footage was requested prior to its expiration. However, IAB did not fulfil the request in time and the footage subsequently expired (**Board Review 03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At 901 Livonia Avenue in Brooklyn, Sergeant Charles Barhold searched the vehicle in which § 87(2)(b) was an occupant.

Sgt. Barhold’s BWC footage, starting at the 00:12 mark of the timestamp visible at the bottom of the screen, shows Sgt. Barhold exiting the police van and approaching § 87(2)(b) who is standing outside of the car. While PO Walsh and PO Amello speak with § 87(2)(b) at 00:30, Sgt. Barhold looks at the temporary license plate in the rear windshield and says, “Fake.” At 00:44, Sgt. Barhold walks to the passenger front door, tells § 87(2)(b) to put his hands down, and opens the door. Sgt. Barhold leans into the car and looks in the back seat with a flashlight. At 01:23, Sgt. Barhold exits the car and orders the officers to take § 87(2)(b) to the back of the car – § 87(2)(b) refuses and says that Sgt. Barhold is illegally searching his car. Sgt. Barhold replies that he is not, and says, “This is not how it goes. It goes how we say” (**Board Review 04**).

§ 87(2)(b) testified that he parked near a pizzeria, located at 901 Livonia Avenue in Brooklyn, turned off his vehicle’s engine, and exited his vehicle. § 87(2)(b) noticed a black unmarked police van with lights and sirens approach him. Sgt. Barhold, PO Amello, PO Rasool, and PO Walsh got out of the police van and approached him. An officer told § 87(2)(b) to get back in his vehicle. § 87(2)(b) asked why, and the officers told him that he had run a red light. § 87(2)(b) apologized and said he would take the summons. The officers repeated their order to reenter the vehicle, but § 87(2)(b) refused. § 87(2)(b) noticed Sgt. Barhold searching his vehicle from the front passenger

door without permission and without providing any explanation. Sgt. Barhold was “rummaging through” § 87(2)(b) s possessions in the front passenger area, including the dashboard and glovebox. § 87(2)(b) told Sgt. Barhold to get out of his car multiple times (**Board Review 05**).

§ 87(2)(b) was charged with being in § 87(2)(b) (**Board Review 01**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Sgt. Barhold testified that upon stopping and approaching § 87(2)(b) s vehicle, he noticed that § 87(2)(b) had a temporary license plate taped in the rear windshield, but did not recall if he knew at the moment that it was fraudulent. He did not initially recall searching § 87(2)(b) s vehicle. After watching his BWC footage, Sgt. Barhold recalled entering § 87(2)(b) s vehicle. Sgt. Barhold testified that he opened the car door to make sure that there were no weapons inside of the vehicle and to make sure that § 87(2)(b) did not throw anything into the car, as § 87(2)(b) exited the car quickly and was standing next to the driver’s side door. At the point in which Sgt. Barhold entered the vehicle, he had already determined that the license plate was fake and that § 87(2)(b) was under arrest. The video did not refresh Sgt. Barhold’s recollection regarding how he identified that the license plate was fraudulent as he could not see the plate in the video (**Board Review 06**).

Both PO Amello and PO Walsh testified that they did not have an independent recollection of Sgt. Barhold searching § 87(2)(b) s vehicle (**Board Review 07, 08**).

PO Rasool resigned from the NYPD (**Board Review 09**).

A vehicle may be searched without a warrant pursuant to the "automobile exception" if law enforcement officials have probable cause to believe that the vehicle "contains contraband, evidence of [a] crime, a weapon or some means of escape People v McCaw 137 A.D.3d 813 (2016) (**Board Review 10**).

§ 87(2)(g)

Allegation (B) Abuse of Authority: At 901 Livonia Avenue in Brooklyn, Police Officer Nowaiz Rasool frisked § 87(2)(b)

§ 87(2)(b) did not allege that PO Rasool frisked him prior to being placed in handcuffs (**Board Review 05**). He did allege that he was searched after being placed under arrest, however, a search allegation was not pled as he was searched incident to lawful arrest.

Sgt. Barhold’s BWC footage, starting at the 00:24 second mark of the timestamp visible at the bottom of the screen, shows officers exiting their car and approaching § 87(2)(b) PO Rasool walks behind § 87(2)(b) and pats down his waist (**Board Review 04**).

PO Rasool has resigned from the NYPD (**Board Review 09**). § 87(2)(g)

Allegation (C) Discourtesy: At 901 Livonia Avenue in Brooklyn, Sergeant Charles Barhold spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not allege that Sgt. Barhold used discourteous language toward him (**Board Review 05**). The following was captured on Sgt. Barhold's BWC footage:

Sgt. Barhold's BWC footage, starting at the 02:05 mark of the timestamp visible at the bottom of the screen, shows that after § 87(2)(b) told Sgt. Barhold that he was searching the car illegally, and as officers walk § 87(2)(b) to the back of his car, Sgt. Barhold tells § 87(2)(b) "If you want to keep going this way we will just do this at the precinct." § 87(2)(b) asks, "which way is this?" Sgt. Barhold replies, "The way you are choosing, the road that you are going down." § 87(2)(b) says from the rear of the vehicle, "Close my door. Close my door now." Sgt. Barhold replies, "What? Turn around. Just bring him, fuck him." § 87(2)(b) replies, "Fuck me then" (**Board Review 04**).

Sgt. Barhold initially testified that he said, "Fuck it, bring him back." Sgt. Barhold was talking to his officer and was not speaking to § 87(2)(b) and could not otherwise provide a reason for his use of profanity. After watching his BWC footage, he acknowledged that he stated, "fuck him" and not "fuck it" as he had previously testified, but Sgt. Barhold maintained that he was not speaking to § 87(2)(b) (**Board Review 06**).

NYPD Patrol Guide Procedure 203-09 states that police officers must be courteous and respectful when dealing with civilians (**Board Review 11**). Disciplinary Case No. 2017-17005 states that while officers are allowed to use discourteous language during stressful situations, officers are only permitted to do so when scenes are so chaotic that the duty of courteousness and professional behavior should be overridden by the immediate need to maintain order (**Board Review 12**).

§ 87(2)(g)
[REDACTED]

Allegation (D) Abuse of Authority: At the 75th Precinct stationhouse, Police Officer Sean Walsh refused to provide his name to § 87(2)(b)

Allegation (E) Discourtesy: At the 75th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after he was arrested the officers took him to the 75th Precinct stationhouse. While being processed at the front desk, § 87(2)(b) asked PO Walsh for his name and PO Walsh refused to provide the information. An officer then asked § 87(2)(b) "Why you gotta be a dick?" (**Board Review 05**).

PO Walsh's BWC footage, at the 13:20 mark, shows § 87(2)(b) asking for PO Walsh's name. PO Walsh responds, "Walsh, 761." § 87(2)(b) asks for PO Walsh's first name and PO Walsh tells § 87(2)(b) "Don't worry about it." The BWC footage captures the same time frame in which the alleged profanity was used, and at no point does an officer ask § 87(2)(b) "Why you gotta be a dick?" or otherwise use profanity (**Board Review 13**).

PO Walsh's testimony was consistent with his BWC footage. He testified that he did not provide his first

name as he was not required to **(Board Review 08)**.

§ 87(2)(g)

§ 87(2)(g)

Allegation (F) Force: At the 75th Precinct stationhouse, Police Officer Michael Amello used physical force against § 87(2)(b)

Allegation (G) Force: At the 75th Precinct stationhouse, Police Officer Nowaiz Rasool used physical force against § 87(2)(b)

Allegation (H) Discourtesy: At the 75th Precinct stationhouse, Police Officer Nowaiz Rasool spoke discourteously to § 87(2)(b)

PO Rasool's BWC footage, starting at the 02:00 mark of the timestamp visible at the bottom of the screen, shows PO Rasool escorting § 87(2)(b) into the holding cell area. At 02:20, PO Rasool instructs § 87(2)(b) to face the wall and tells § 87(2)(b) that he is going to unhandcuff him so PO Rasool can remove his jacket. PO Rasool removes the handcuffs and tells § 87(2)(b) to place his hand on the wall. § 87(2)(b) places his hand on the wall, and yells, "sure." PO Rasool tells § 87(2)(b) "Chill out." § 87(2)(b) turns to face PO Rasool and asks, "Whatcha gonna do if I don't?" PO Rasool again tells § 87(2)(b) to "chill out." § 87(2)(b) yells, "Chill out? You gonna ask me again?" PO Rasool grabs § 87(2)(b)'s arm and pushes him against the wall while holding handcuffs. The camera then shakes before the video ends **(Board Review 14)**. PO Rasool has resigned from the NYPD and thus it is unclear why his BWC turned off during the incident **(Board Review 09)**.

PO Amello's BWC footage from the same moment, starting at the 12:00 mark of the timestamp of the bottom of the screen, shows that after PO Rasool grabbed § 87(2)(b)'s arm, PO Amello also grabbed § 87(2)(b). The camera then falls to the ground and the view is obscured while commotion is heard in the background. At 12:55, PO Rasool says, "Put these fucking things on." The video then ends **(Board Review 23)**.

A request for stationhouse footage was made prior to the expiration date, however, IAB did not process the request in time and the footage expired **(Board Review 03)**.

§ 87(2)(b) alleged that PO Rasool escorted him into the holding cells. PO Rasool then unhandcuffed § 87(2)(b) and ordered him to put his hands against the wall. § 87(2)(b) did not recall how he responded, but described himself as agitated. PO Rasool grabbed § 87(2)(b)'s clothing at the back of his neck and arm, and put him face-down on the floor **(Board Review 05)**.

PO Amello testified that he and PO Rasool brought § 87(2)(b) to the holding cells. PO Rasool removed the handcuffs from § 87(2)(b). § 87(2)(b) turned to face PO Rasool and bladed his body. PO Rasool ordered § 87(2)(b) to face the wall, but § 87(2)(b) did not comply. PO Amello grabbed § 87(2)(b) by the triceps and pushed him against the wall to get his hands behind his back. § 87(2)(b) tensed his arms to prevent officers from putting his palms together and placing him in handcuffs. PO Amello and PO Rasool then pulled § 87(2)(b) to the ground to restrain him **(Board Review 07)**.

PO Rasool has resigned from the NYPD **(Board Review 09)**.

Sgt. Barhold prepared a TRI regarding this incident. The TRI lists PO Amello and PO Rasool as the reporting officers and states that during a search in the cell area, § 87(2)(b) turned toward officers and threatened them. PO Rasool pushed § 87(2)(b) against a wall and he and PO Amello took § 87(2)(b) to the ground. Additional officers ran into the cell to assist the officers. § 87(2)(b) alleged that officers punched and kicked him, injuring his ribs and knees. However, Sgt. Barhold's review of the surveillance footage showed no such force (**Board Review 17**).

Sgt. Barhold did not recall if he accompanied § 87(2)(b) back to the stationhouse, nor did he recall this portion of the incident. Sgt. Barhold was shown the TRI and the BWC footage, but it did not refresh his recollection (**Board Review 06**).

NYPD Patrol Guide, Procedure 221-01 states that officers may use force when it is reasonable to place a person into custody, ensure the safety of a member of service or a third person, or to enforce compliance. When reasonable, officers should first attempt to gain voluntary compliance by using de-escalation techniques (**Board Review 15**)

§ 87(2)(g)
[REDACTED]

Allegation (I) Force: At the 75th Precinct stationhouse, officers used physical force against § 87(2)(b)

There is no video evidence that captures this portion of the incident. A request for stationhouse footage yielded negative results (**Board Review 03**). PO Amello's BWC footage fell to the ground during the struggle and does not capture any video during this portion of the incident (**Board Review 23**). Given that PO Amello did not turn off his BWC, an OMN has not been pled.

§ 87(2)(b) alleged that after PO Amello and PO Rasool took him to the ground, additional officers entered the holding cell and he felt downward pressure on his arms and legs. The officers shackled § 87(2)(b)'s feet. § 87(2)(b) felt punches, pulls, and kicks throughout his body, though he could not see the officers striking him. Officers held each of § 87(2)(b)'s legs and arms, and an officer stepped on § 87(2)(b)'s head. § 87(2)(b) then felt a strong kick to the right side of his ribs, which prompted him to ask the officers to stop. Face-down the entire time with his head pinned, he was unable to identify any of the officers, although he did not believe PO Walsh was involved. The officers told § 87(2)(b) to stop resisting, though § 87(2)(b) was not resisting. An officer then placed § 87(2)(b) in handcuffs and stood him up (**Board Review 05**).

§ 87(2)(b)'s medical records from § 87(2)(b) show that § 87(2)(b) was admitted on § 87(2)(b) and that he was discharged at § 87(2)(b) on the same day. His chief complaint was that he was beaten up by police officers three days prior and that he suffered from generalized pain, especially in the right rib. The hospital took X-rays of § 87(2)(b)'s ribs and chest which showed that there were no fractures, lesions, or abnormalities. He was prescribed ibuprofen and methocarbamol for pain. On § 87(2)(b), § 87(2)(b) was again admitted to § 87(2)(b) and discharged the same day § 87(2)(b). His chief complaint was that he suffered

from right rib pain and right knee pain. The hospital took additional X-rays of § 87(2)(b)'s ribs and chest which again showed no fractures or abnormalities. He was prescribed ketorolac, methocarbamol, and naproxen for pain **(Board Review 16)**.

PO Amello testified that after he and PO Rasool took § 87(2)(b) to the ground, PO Amello pulled § 87(2)(b)'s arms behind his back and placed him in handcuffs. PO Amello believed that officers also placed leg shackles on § 87(2)(b). PO Amello did not recall if any officer struck § 87(2)(b) with punches or kicks, placed their knee on him, or stepped on his head while he was on the ground being handcuffed. After § 87(2)(b) was handcuffed, PO Amello lifted § 87(2)(b) up by his arms and placed him inside the cell **(Board Review 07)**.

PO Rasool has resigned from the NYPD **(Board Review 09)**.

PO Walsh testified that he was filling out the prisoner pedigree information sheet at the desk, he heard a commotion in the cells that sounded like an argument. PO Walsh lodged his firearm and went into the holding cells, but by the time he got there § 87(2)(b) was restrained by several officers including PO Rasool and PO Amello. PO Walsh was only in the holding cells briefly before exiting. He did not recall if § 87(2)(b) was on the ground or standing when he was restrained, or how the officers were holding him. PO Walsh did not recall if he observed injuries on § 87(2)(b) **(Board Review 08)**.

Sgt. Barhold did not recall if he accompanied § 87(2)(b) back to the stationhouse, nor did he recall this portion of the incident. Sgt. Barhold was shown the TRI and the BWC footage, but it did not refresh his recollection **(Board Review 06)**.

Sgt. Barhold prepared a TRI regarding this incident. The TRI lists PO Amello and PO Rasool as the reporting officers and states that during a search in the cell area, § 87(2)(b) turned toward officers and threatened them. PO Rasool pushed § 87(2)(b) against a wall and he and PO Amello took § 87(2)(b) to the ground. Additional officers ran into the cell to assist the officers. § 87(2)(b) alleged that officers punched and kicked him, injuring his ribs and knees. However, Sgt. Barhold's review of the surveillance footage showed no such force **(Board Review 17)**.

§ 87(2)(b) alleged that after PO Amello and PO Rasool took him to the ground, that additional officers entered the cells and that officers, who he could not see, punched and kicked him and stood on his head. PO Amello did not recall officers using force on § 87(2)(b) beyond pulling his arms behind his back, and PO Rasool has resigned from service. The TRI report only lists PO Amello and PO Rasool as using force against § 87(2)(b) but does note that additional officers entered the holding cells to assist. Sgt. Barhold, who prepared the TRI report, did not recall this portion of the incident and could not identify the officers. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation (J) Discourtesy: At the 75th Precinct stationhouse, an officer spoke discourteously to

§ 87(2)(b)

Allegation (K) Abuse of Authority: At the 75th Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.

There is no video evidence that captures this portion of the incident. A request for stationhouse footage yielded negative results **(Board Review 03)**.

§ 87(2)(b) testified that after the officers handcuffed § 87(2)(b) they placed him inside of a holding cell. An officer, who he could only describe as an overweight Hispanic male, watched § 87(2)(b). The officer told § 87(2)(b) that he had been an officer for 20 years. The officer said to

§ 87(2)(b) “Shut the fuck up” and threatened § 87(2)(b) with force, though § 87(2)(b) could not recall any specifics about the threats that the officer made **(Board Review 05)**.

Sgt. Barhold testified that he did not recall this portion of the incident **(Board Review 06)**. PO Walsh and PO Amello did not recall hearing any officer threatening § 87(2)(b) or using profanity while speaking with § 87(2)(b) **(Board Review 07, 08)**.

A request for the Prisoner Holding Pen Roster yielded negative results **(Board Review 18)**. The roll call lists PO Michael Devito as the cell attendant. According to CTS, PO Devito is a white male who has a tenure of eight years **(Board Review 19)**.

§ 87(2)(b) alleged that a Hispanic male officer with a 20-year tenure, who was watching the cells, cursed at him and threatened him with force. However, a request for the Prisoner Holding Pen Roster yielded negative results and the roll call lists the cell attendant as a white male with an eight year tenure.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party **(Board Review 20)**.
- PO Amello has been a member of the NYPD for 10 years. He has been a subject in 7 additional complaints, totaling 30 allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Barhold has been a member of the NYPD for 12 years. He has been a subject in 3 additional complaints, totaling 26 allegations, none of which were substantiated. § 87(2)(g)
- PO Walsh has been a member of the NYPD for five years. He has been a subject in four additional complaints, totaling 13 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of October 23, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint **(Board Review 21)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 06

Investigator: Inv. Thomas Juliano Inv. Thomas Juliano 09/13/2021
Signature Print Title & Name Date

Squad Leader: Jessica Pena IM Jessica Pena 9/16/2021
Signature Print Title & Name Date

CCRB Case # 201910276

